

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.

MIGUEL AGOSTO,
Plaintiff,

SUMMONS

-against-

THE CITY OF NEW YORK, AND
POLICE OFFICER GEORGE ALLEN,

Defendants.

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THE PLAINTIFF DESIGNATES KINGS COUNTY AS THE PLACE OF TRIAL.

THE BASIS OF THE VENUE IS THE PLACE OF OCCURRENCE.

THE PLAINTIFF RESIDES AT 2949 WEST 23RD STREET, BROOKLYN, NY 11224.

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: _____

Da Texena Barango Tariah, Esq.
Attorney for Plaintiff
25 Bond Street, Brooklyn,
NY 11201.
(718) 625 4200

Defendants' Address:
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

MIGUEL AGOSTO

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, and
POLICE OFFICER GEORGE ALLEN

JURY TRIAL
DEMANDED

Defendants.

INTRODUCTION STATEMENT

1. This is a civil action seeking to redress violations of plaintiff's rights under the Constitution and laws of the United States and the State of New York for defendants' conduct in falsely arresting, and falsely imprisoning him.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C.A. sections 1983 and 1988 and the Equal Protection clause to the United States Constitution, and the State law claims of false imprisonment.

PARTIES

3. Plaintiff is a resident of Brooklyn, New York. At the time of the event alleged, he resided in the city of Brooklyn in Kings County in the state of New York.
4. The defendant, The City of New York is a municipality in the State of New York, and employs the defendant Police Officer George Allen (hereinafter "Allen"), and the actions and / or conduct of the officer complained of herein were done as part of the custom, practice, usage, regulation and / or direction of the City of New York.
5. Defendant Allen is a New York Police Officer who is being sued in his individual and official capacity.

FACTUAL ALLEGATIONS

6. On December 4, 2015, at about 6:00 p.m., the plaintiff was visiting a friend at 409 Saratoga Avenue, Brooklyn, New York.

7. As he was leaving the house he had visited, he heard gun shots on the street, he got scared and ran back into the house.
8. Upon eventually exiting the house, he was arrested by defendant Police Officer Allen.
9. He was held by the defendants for about 7 hours, and then was released from Central Booking without appearing before a Judge.
10. As a direct and proximate result of the conduct of the defendants, the plaintiff had suffered, and continues to suffer mental and emotional distress, injury to health, well-being and feelings.

AS A FIRST CAUSE OF ACTION:

False Arrest Against all Defendants

11. Plaintiff hereby restates paragraphs 1-10 of this Complaint, as though fully set forth below.
12. Defendant The City of New York through its agents, and defendant Police Officer Allen violated plaintiff's rights under the Fourth Amendment and 42 U.S.C.A. Section 1983 by falsely arresting him.

AS A SECOND CAUSE OF ACTION:

False Imprisonment Against all Defendants

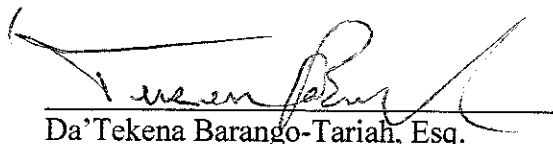
13. Plaintiff hereby restates paragraphs 1-12 of this Complaint, as though fully set forth below.
14. Defendant The City of New York through its agents, and defendant Police Officer Allen violated plaintiff's rights under the New York State Constitution by falsely imprisoning him.

WHEREFORE, Plaintiff respectfully requests judgment against the defendants as follows:

- a. Compensatory and punitive damages in an amount to be determined at trial, and reasonable attorneys' fees and costs; and
- b. Such other and further relief as may be just and proper.

Dated: Brooklyn, New York
February 28, 2017

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Da'Tekena Barango-Tariah', is written over a horizontal line.

Da'Tekena Barango-Tariah, Esq.

25 Bond Street, 2nd Floor
Brooklyn, New York 11201
(718) 625 4200

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Plaintiff,

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-against-

THE CITY OF NEW YORK, AND
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Defendants.

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Da'Tekena Barango-Tariah, Esq.
Attorney for Plaintiff
25 Bond Street, 2nd Floor
Brooklyn, New York 11201
718 625 4200
Fax: (718) 625 2690

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Take Notice that the attached is a true copy of a Judgment duly entered
in the office of the clerk of the within named court on _____

STATE OF NEW YORK, COUNTY OF KINGS ss:

I, _____ say, under penalty of perjury, I am not a party to the action, that I
reside at Brooklyn, New York, and I am over the age of 18 years of age and on
_____, I served a copy of the attached _____ by mailing the same in a sealed
envelope, with postage prepaid therein, in a post-office of official depository of the
defendant at: